

SECTION L

FAR 52.212-1 ADDENDUM – INSTRUCTION TO OFFERORS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

The Washington Headquarters Services (WHS)/Acquisition Directorate (AD) is releasing this solicitation electronically only. This electronic version of the Request for Proposal (RFP) is the official version for this acquisition. No hard copy of this solicitation will be issued. Offerors will be notified of any and all applicable amendments to this solicitation electronically. Offerors shall submit their proposals electronically. Any proposal received after the due date and time specified for receipt will be considered late and will be rejected.

I. GENERAL

- a) In order to maximize efficiency and ensure fairness during the evaluation process, all Contractors must comply with the following instructions for the proposal format and content. Proposals that do not comply with these instructions may be considered not technically acceptable and may render the offeror ineligible for award. The Government may reject any or all proposals if such action is in the public interest, accept a proposal other than the lowest priced, and waive informalities and minor irregularities in proposals received. The offeror shall submit documentation illustrating its approach for satisfying the requirements of this solicitation. Proposals must be clear, coherent, and prepared in sufficient detail for effective evaluation of the Contractor's proposal against the evaluation criteria.
- b) Proposals containing exceptions to the terms and conditions of the solicitation or any other deviation to the solicitation's terms shall be rejected and considered ineligible for award.
- c) Pursuant to FAR 52.212-1(g), the Government may evaluate offers and award without discussions but reserves the right to conduct discussions if determined to be in the Government's best interest. If discussions are held the government may establish a competitive range for efficiency purposes.
- d) The Government anticipates awarding a single Indefinite Delivery/Indefinite Quantity (IDIQ) contract, resulting from this solicitation to the responsible Offeror whose offer, conforming to the solicitation, is most advantageous to the Government, considering price and other factors.
- e) The following factors shall be used to evaluate offers:
- PASS/FAIL – Security & Key Personnel
 - FACTOR I – Past Performance
 - FACTOR II – PRICE

Past Performance is more important than Price. (*See 52.212-2 Evaluation Addendum for details*)

II. DEADLINE FOR RECEIPT OF QUESTIONS

- a) All questions, concerns, or requests for clarification of this solicitation shall be submitted via email to the organizational email address listed below. Telephone inquiries will not be entertained.

whs.pentagon.ad.mbx.fomb@mail.mil

Offerors shall not include any proprietary information in any question, as all questions and answers will be provided to all potential offerors. Furthermore, all inquiries must be submitted electronically to the email address provided; no other form of contact with Government personnel is permitted.

- b) Offeror shall affix the following as the email's subject line:

Question: **HQ003426RE025 Environmental Support Services – *Your Company Name***

- c) Questions shall be emailed before/by **Monday, April 27, 2026, at 4:00 PM (EST)**.
The Government will not provide answers to questions received after the deadline.

- d) To ensure efficient and accurate responses, all questions must:

- Clearly specify the exact section of the solicitation document the question pertains to.
- Reference the solicitation document and any attachments, including the section heading and page number relevant to the question.
- Not include any proprietary information.

Questions and responses will be provided to all offerors via an amendment to the solicitation. Offerors must acknowledge of any (and all) amendments on their cover page of the solicitation. Failure to acknowledge all amendments issued by the Government may result in the proposal submitted in response to the solicitation being found not compliant with the solicitation instructions.

III. PROPOSAL SUBMISSION:

- a) Offerors must submit an electronic copy of their proposal in accordance with the following format:
- Volume I: Administrative/Cover Letter
 - Volume II: Security and Key Personnel Requirements
 - Volume III: Factor I – Past Performance
 - Volume IV: Factor II – Price

b) Electronic Submission:

Offerors are responsible for ensuring electronic copies are virus-free and shall run an anti-virus scan before submission.

Electronic copies of each volume shall be submitted through the organizational e-mail address whs.pentagon.ad.mbx.fomb@mail.mil **before or by date and time indicated on page 1, block 8 of the solicitation (SF1449)**. It is the responsibility of the Offeror to confirm receipt of proposals. Proposals received after the specified deadline will be considered late and will not be evaluated.

Electronic transmission to a government system is not instantaneous and delays in transmission often occurs. The Government takes no responsibility for any delays in the transmission of a Contractor's electronic submission. The Government also takes no responsibility for any proposals not received due to technical, systemic, or server issues.

c) Text and graphics portions of the electronic copies shall be in a format readable by Adobe (PDF), MS Word, and/or MS Excel. All proposal submissions to the solicitation shall be in separate volumes identified in the Proposal Content Chart (below).

****** NOTE: The date and time of the ELECTRONIC COPIES received shall be considered the official on-time receipt. Electronic copies received after the due date and time shall be considered untimely and shall render the entire proposal ineligible for award.******

IV. PROPOSAL CONTENT CHART:

PROPOSAL CONTENT	PAGE LIMITATION
Volume I: Administrative	➤ Cover letter (2 page Limit) (<i>Volume I is the only volume that has a cover letter requirement.</i>) ➤ Signed Contractor Non-Disclosure Agreements (NDA)/OCI Certification ➤ Signed and completed Representations & Certifications of FAR/DFARS clauses/provisions in SF1449 and amendments.
Volume II: Security and Key Personnel Requirements	➤ Completed Attachment 4 Key Personnel Qualifications Table (See Attachment for page limit) ➤ Copies of the following: (no page limit) ○ Degree Certificate ○ Certification/licensure ○ Letter of Commitment

Volume III: Factor I – Past Performance	➤ Completed Attachment 5 Past Performance Data (PPD) submission for three (3) total relevant and recent projects performed by the prime and/or primary (1st tier) subcontractor Offeror shall submit either the following: - Two (2) Prime & One (1) Primary 1st tier Sub - - Three (3) Prime - - Three (3) Primary 1st tier Sub - (See Attachment for Page Limit) ➤ Completed Attachment 7 Client Authorization Letter for the 3 projects (1 page limit) ➤ Offeror shall complete section 1, and 2 of Attachment 6 Past Performance Questionnaire (PPQ) for the 3 projects and send to clients to complete section 3 and 4 and return per the Client Authorization Letter. (no page limit.)
Volume IV: Factor II – Price	➤ Complete Attachment 8 Pricing Submission Worksheet (no page limit).

V. CONTENT INSTRUCTIONS:

a) An incomplete submission or failure to follow instructions will result in an offer not being evaluated and render an offeror ineligible for award. All proposals must clearly and convincingly demonstrate that the Offeror has a thorough understanding of the requirements and associated risks, and is able, willing, and competent to devote the resources necessary to meet or exceed the requirements. Proposals shall demonstrate ability to comply with all requirements in the solicitation. General statements that the Offeror can or will comply with the requirements, that standard procedures will be used, that well known techniques will be used, or paraphrases of the PWS, will not constitute compliance, and will fail.

The Offeror must assume that the Government has no prior knowledge of the Offeror's capabilities and experience and will base its evaluation only on the information presented in the Offeror's proposal.

b) Offeror shall use standard 8 1/2 x 11" size paper with, at minimum, 3/4" margins on all sides. The entire written submission shall use Times New Roman or other plain font that is easily decipherable and, at minimum, a 11 point font size for text and a 10 point font size for tables

and graphics. All pages shall include page numbering and shall be submitted in Microsoft (MS) Word or Adobe PDF. Pricing shall be provided in MS Excel format.

c) Labeling – Each volume shall be submitted in separate PDF (ensure PDF is searchable with text recognition). MS Word and /or MS Excel, identified by the Volume Number.

d) The Government reserves the right to not evaluate or consider any incomplete proposal. An incomplete proposal is defined as one that is lacking the information required in this solicitation and will fail. Offerors shall assume that the Government has no prior knowledge of their facilities and experience and will base its evaluation on the information presented in the Offeror's proposal.

e) Offeror must have an active registration in the System for Award Management (www.sam.gov) and complete all representations and certifications required by this solicitation.

f) Ensure that all confidential information within the submission is marked IAW the paragraph below entitled, "Confidential Information."

Confidential Information: The Freedom of Information Act (FOIA) and its amendments have resulted in an increasing number of requests from outside the Government for copies of contract qualifications and proposals submitted to federal agencies. If the Contractor's submissions contain information that he/she believes should be withheld from such requestors under FOIA on the grounds that they contain "trade secrets and commercial or financial information" [5 USC§552(b)(4)], the Contractor should mark its submissions in the following manner:

The following notice should be placed on the title page: *"Some parts of this document, as identified on individual pages, are considered by the submitter to be privileged or confidential trade secrets or commercial or financial information not subject to mandatory disclosure under the Freedom of Information Act. Material considered privileged or confidential on such grounds is contained on page(s) _____".*

Each individual item considered privileged or confidential under FOIA should be marked with the following notice: "The data or information is considered confidential or privileged and is not subject to mandatory disclosure under the Freedom of Information Act".

g) The Offeror shall complete the necessary fill-ins and certifications in CLAUSES INCORPORATED BY FULL TEXT. The Offeror shall sign and return the solicitation and any amendments.

VI. VOLUME CONTENT:

a) Volume I: Administrative

The Administrative Volume shall include the following:

- 1) Offeror's cover letter: Offeror's cover letter shall include:
 - Solicitation number
 - Date of proposal submittal

- Acknowledgement of all amendments
- Contractor's name, address
- Taxpayer Identification Number
- CAGE code
- Unique Entity Identification (UEI) Number
- Authorized representative's name, title, and email address
- CAGE code and UEI Number for any subcontractors or teaming partners providing support
- Proposal's validity period (minimum 120 days from the due date); and
- List of all enclosures.

In accordance with FAR Subpart 4.8 (Government Contract Files), the Government will retain one copy of all unsuccessful proposals.

2) Contractor Conflict of Interest (COI) Disclosures: Using Attachment 9, ADAP Form 209-506-5 Contractor Conflict of Interest Disclosure Form and ADAP Form 209-506-1 Contractor Conflict of Interest Disclosure, to identify any actual or potential conflicts that may occur as a result of this award. Please include Subcontractors and their personnel in this analysis. Actual or potential conflicts of interest must be described in adequate detail for the government to determine if actual or potential conflict exists. Failure to provide adequate information in the disclosure form shall result in the proposal being rejected and, thus, relieves the government of any further responsibility to resolve conflict issues. See FAR 9.504(e). Notices to Offerors of conflicts and their response thereto are not negotiations or discussions as those terms are used in FAR 15.306(d).

NOTE: The Non-Disclosure Agreement (NDA) for an awardee employees is not required to be submitted with the proposal. Awardee's employees shall complete a NDA Form prior to commencing of work.

3) Signed and completed Representations and Certifications of FAR/DFARS clauses/provisions in SF1449 and all solicitation amendments.

b) Volume II: Pass/Fail Requirements: Security and Key Personnel

To be eligible for contract award, Offeror must PASS the following requirements:

1) **Part 1: Security Requirements:** The Offeror must possess, on the proposal due date, a current/active DoD Industrial Facility Security Clearance from the Defense Counterintelligence and Security Agency (DCSA) at the SECRET level or above. There will be no exceptions or extensions to this requirement. All companies aligning as a joint Venture (JV) candidate must have an active secret clearance individually by proposal due date. This security clearance is a PASS/FAIL requirement to be verified by the Government. Contractor personnel performing work under this contract shall be able to obtain a Secret personnel security clearance (PCL) at time of award and shall maintain that level of PCL for the life of the contract.

Washington Headquarters Services/Acquisition Directorate will NOT sponsor potential Offerors for the facility clearance requirement. Any Offeror who cannot be verified as having an active/current DoD Industrial Facility Security Clearance, at the SECRET level, at proposal due date, shall be deemed ineligible for award and their proposal will not be further considered by the Government.

2) Part 2: Key Personnel Requirement: The Offeror's proposal shall:

- a) Submit a completed Attachment 4 Personnel Qualification Table as outlined in Attachment 1 Performance Work Statement (PWS) Part 1 –General Information, Sections 1.13 – Personnel Matter & Part 5 – Specific Tasks.
- b) Provide a signed Letter of Commitment as of the proposal due date.
- c) Provide copy of degree and certificates/licenses.
- d) There is no page limit on, Letters of Commitment, and copies of degrees, certificates, or licenses.

Any proposed Key Personnel who do not meet the minimum qualifications, at proposal due date, shall be deemed ineligible for award and the offerors proposal will not be further considered by the Government. Missing submittals will result in proposal failure. All proposed Personnel MUST meet the minimum qualifications, at proposal due date.

Letters of Commitment Notice: Offerors shall include Letters of Commitment (LoC) for all proposed personnel by the Offeror. These letters must be submitted with the proposal by the due date and time of the receipt of proposal. All LoC shall be signed by the proposed personnel within ten (10) calendar days of the proposal due date. If revised proposals are requested or required, the LoC shall be updated with a new signature and signature date within 10 calendar days of the due date of the revised proposal. Personnel shall not use Government issued Common Access Cards to sign any portion of proposal documents. The signature date must accompany the signature in the signed LoC. Each letter shall affirmatively state: (1) that the individual has provided permission to the Offeror to include him/her name in the proposal as personnel for the relevant position, and (2) that the individual is willing to work for the Offeror (or for the subcontractor or teaming partner) on the instant solicitation. If the Offeror learns, or has reason to believe, of the unavailability (e.g., death or disqualification) of its proposed personnel, the Offeror shall notify the Contracting Officer in writing no later than the next business day. Upon timely notice, the Government may accept a signed LoC from a proposed substitute.

An offeror's failure to follow the Solicitation instructions nor include all required information will fail and their proposal will not be evaluated further.

c) Volume III: Factor I – Past Performance

1) Past Performance Data Sheets:

The Offeror shall submit three (3) completed Attachment 5 Past Performance Data (PPD) submission for three (3) total relevant and recent projects. The two (2) relevant and recent projects may be performed by the prime and one (1) may be performed by the primary (1st tier) subcontractor or all three (3) projects can be performed by either the prime or primary (1st tier) subcontractor. The three (3) total projects can be for Government or commercial contracts for services directly related or similar to the services required in section 5 of the PWS.

To be considered, the referenced project must, at a minimum, involve Facility Environmental Compliance, Planning, and Resiliency Technical Support Services of similar scope, size and complexity to the solicited work; and total contract value over \$8 million for any federal or private projects. Referenced projects must have been completed within five (5) years from the date of solicitation issuance or currently ongoing and have completed at least six (6) months of performance by solicitation issuance.

Past performance by contractor's predecessor companies or key personnel will be considered for the offeror's three (3) total projects. The Offeror shall describe how the subcontractor, predecessor company or key personnel significantly contributed to the referenced project and the subcontractor, predecessor company or key personnel will significantly contribute to the solicited work. A sufficient nexus between a predecessor company's management and the Offeror's management must also be established for a project performed by a predecessor company to be considered.

An Offeror who does not have the same or similar past performance information reasonably available, must notate it in the PPD sheet.

The Offeror shall address in the PPD Sheet the following:

- The nature of the effort;
- The tasks performed as they relate to Performance Work Statement;
- Schedule / Timeliness;
- The extent of involvement (as a prime versus a Subcontractor, predecessor company or key personnel);
- The period of performance;
- Point of contact, phone and email address for each contact listed.

- 2) Client Authorization Letter: Based on the three (3) relevant and recent projects submitted in the PPD, the Offeror shall complete Attachment 7 - Client Authorization Letter for each of the three (3) client references requesting their assessment of the projects and completion of Section 2, 3 and 4 of Attachment 6 Past Performance Questionnaire (PPQ).
- 3) Past Performance Questionnaire: Offeror shall complete Sections 1 of Attachment 6 - Past Performance Questionnaire (PPQ) based on the three (3) relevant and recent projects submitted in the PPD. The Offeror shall send the Client Authorization Letter accompanied by the PPQ to each client reference. Completed PPQs shall be returned directly from each client reference to the Governments organizational mailbox, whs.pentagon.ad.mbx.fomb@mail.mil, no later than the solicitation due date and time (SF 1449, page 1, block 8).
- 4) It is in the discretion of the Government to contact references provided. Missing or late submission of PPDs and PPQs shall result in the government's determination that the Offeror is ineligible for award and their proposal will not be further evaluated by the Government.

Summary: The Offeror shall submit:

- a. Completed Attachment 5 – Past Performance Data (PPD) for three (3) total relevant and recent projects.
- b. Completed Attachment 6 – Past Performance Questionnaire (PPQ) based on the three (3) relevant and recent projects to be submitted by the Offerors client in accordance with the client Authorization Letter instructions.
- c. Completed Attachment 7 – Client Authorization Letter for each of the three (3) client references.

Missing submission of these sheets shall result in the Government's determination that the Offeror is ineligible for award and their proposal will not be further evaluated by the Government. An Offeror who does not have the same or similar past performance information reasonably available, must notate it in the PPD sheet.

d) Volume IV: Factor II – Price

- 1) The Offeror shall complete the Government provided Excel titled, "Pricing Submission Worksheet" (Attachment 8) and ensure all formulas are accurately calculated. The pricing volume must differentiate between prime, subcontractor, and teaming partner labor; include labor category hourly rate. Offerors shall complete all

tabs within the Pricing Submission Worksheet. No adjectival ratings will be used to evaluate Price.

- The offeror shall submit pricing for the Sample Task Order 0001 for evaluation purposes. The proposed price shall be used to support price analysis and serve as a baseline for future task orders.

- 2) The Offeror shall provide a Professional Employee Compensation Plan (PECP) in accordance with FAR 52.222-46, as a separate document in PDF. Offerors shall submit a total compensation plan setting forth salaries and fringe benefits for all professional employees proposed to support all labor categories (not just Key Personnel) who will work under the contract. (maximum of 22 pages).

If the Offeror (Prime) has a subcontractor that prefers to submit a separate compensation package, this is being permitted. The subcontractor shall indicate its association with the Prime in a manner that's clear and easily recognizable to the Contracting Officer. The subcontractor's submission may contain a cover page and table of contents. The total PECP shall not exceed 22 pages, and the 22 pages do not count the cover page(s) and table of contents.

- 1) IAW FAR 52.222-46 (a), Offerors' PECP shall be a "total compensation plan setting forth salaries and fringe benefits proposed for the professional employees who will work under the contract." It is a requirement that a PECP submission for all professional employees (prime, subcontractor, and teaming partners) be provided.

This will ensure all professional employees under the prime, subcontractor as well as teaming partner proposed to work under this contract are included in the complete PECP.

- (2) Offerors are permitted to submit the PECP portion of Factor II (Price) in a variety of structures as exemplified below:

(A) Submission of PECP inclusive of Prime, Subcontractor(s) and Teaming Partner(s) employees in its content

-or -

(B1) Submission Prime PECP document content, and,

(B2) Submission as Subcontractor(s) PECP document content, and

(B3) Submission as Teaming Partner(s) PECP document content.

-or-

(C1) Submission of PECP document of Prime & Subcontractor(s) in content, and

(C2) Submission of PECP document of Teaming Partner(s) & Subcontractor(s) in content

-or-

(D1) Submission of PECP document of Prime in content, and

(D2) Submission of PECP document of Teaming Partner(s) & Subcontractor(s) in content

(E) Other various as deemed convenient.

Regardless of the submission format, the PECP portion of the proposal is limited to 22-pages in content, excluding a 2-page cover document and its table of contents (albeit a consolidated submission of individual entity submission)

All proposed total CLIN pricing shall be rounded up to the nearest whole dollar amount (i.e., \$6,558.53 shall be entered as \$6,559.00).

(End of Section L)

SECTION M

52.212-2 EVALUATION ADDENDUM

52.212-2 EVALUATION - - COMMERCAIL PRODUCTS AND COMMERCIAL SERVICES (Nov 2021)

I. GENERAL

- a) Authority: This solicitation is entered into under the authority of 10 USC 2304 and the Federal Acquisition Regulation (FAR) subpart 12.1 Acquisition of Commercial Items – General and FAR Part 15 – Contracting by Negotiation.
- b) Basis of Award: Unless all offers are rejected, the Government will award a single Indefinite Delivery, Indefinite Quantity (IDIQ) contract resulting from this solicitation to the responsible contractor whose offer conforms to the solicitation and is determined to be the best value to the Government, past performance, price, and other factors considered. The Government may select for award an offeror whose price is not necessarily the lowest, but whose proposal is more advantageous to the Government and warrants the additional cost. Offerors must satisfy the requirements described in the Performance Work Statement (PWS), as well as other Request for Proposal (RFP) requirements.
- c) Attachments:
 - Attachment 1 – Performance Work Statement - IDIQ
 - Attachment 2 – Performance Work Statement – Sample Task Order
 - Attachment 3 – QASP
 - Attachment 4 – Key Personnel Qualification Table
 - Attachment 5 – Past Performance Data Sheet
 - Attachment 6 – Past Performance Questionnaire
 - Attachment 7 – Client Authorization Letter
 - Attachment 8 – Pricing submission Worksheet
 - Attachment 9 – Contractor NDA and COI Form
 - Attachment 10 – DD 254
 - Attachment 11 – RFP Section L, M, & H
- d) Pursuant to FAR 52.212-1(g), the Government intends to evaluate offers and award without discussions but reserves the right to conduct discussions if determined to be in the Government’s best interest. Therefore, initial submissions should be complete,

address all requirements, and reflect the Offeror's best terms from a price and non-price standpoint. If discussions are held the Government may establish a competitive range for efficiency purposes. Following discussions, offerors still in the competitive range will be given an opportunity to submit a final proposal revision.

II. PASS/FAIL REQUIREMENTS

Offerors must receive a PASS for all of the required content under Volume II in order to be further evaluated under Factor I and Factor II. The Government will review and evaluate each of the required content under Volume II in the order stated in the Instructions. If the Offeror receives a FAIL for any of the Pass / Fail Requirements, the Offeror will be ineligible for award and will not be evaluated further. Omitting any of the Volume II content will deem a proposal as non-compliant and ineligible for award. A PASS for each Pass/Fail requirement does not guarantee award.

- a) Part 1: Security Requirements: The Offerors must possess, on the proposal due date, a current/active DoD Industrial Facility Security Clearance from the Defense Counterintelligence and Security Agency (DCSA) at the SECRET level or above. There will be no exceptions or extensions to this requirement. All companies aligning as a Joint Venture (JV) candidate must have an active secret clearance individually by proposal due date. This security clearance is a PASS/FAIL requirement to be verified by the Government. Contractor personnel performing work under this contract shall be able to obtain a Secret personnel security clearance (PCL) at time of award and shall maintain that level of PCL for the life of the contract.

Washington Headquarters Services/Acquisition Directorate will NOT sponsor potential Offerors for the facility clearance requirement. Any Offeror who cannot be verified as having an active/current DoD Industrial Facility Security Clearance, at the SECRET level, at proposal due date, shall be deemed ineligible for award and their proposal will not be further considered by the Government.

- b) Part 2: Key Personnel Requirement: The Government will evaluate if the proposed Personnel meet the minimum qualifications, at proposal due date.

The Offeror shall:

1. Submit a completed Attachment 4 Personnel Qualification Table as outlined in Attachment 1- Performance Work Statement (PWS) Part 1 –General Information, Sections 13 – Personnel Matter & Part 5 – Specific Tasks.
2. Provide a signed Letter of Commitment as of the proposal due date.
3. Provide copy of degree and certificates.

Any of the 14 proposed key personnel who do not meet the minimum qualifications, at proposal due date, shall be deemed ineligible for award and the offerors proposal will not be further considered by the Government. Missing submittals will result in proposal failure. All proposed Personnel MUST meet the minimum qualifications, at proposal due date.

III.CONTRACTOR CONFLICT OF INTEREST

The Government will review conflict of interest disclosures and other information available from other sources to determine if actual or potential conflicts exist. The Government will also assess the mitigation plan provided by Offerors as well as any impact to the Government presented by the conflict. Offerors will have an opportunity to respond to the Agency's concerns and to address the conflict of interest consistent with FAR 9.504(e). Based on the foregoing, the Agency will reach a determination regarding the conflict and take any necessary/appropriate remedial measures, such as removing an offeror from the competition.

IV.RELATIVE IMPORTANCE OF THE EVALUATION FACTORS:

Factor I (Past Performance) significantly more important than Factor II (Price). However, price is still a substantial factor. As the evaluation become more equal under Factor I and II, price will become more significant in the award decision.

V.EVALUATION FACTORS:

Award selection will be made in accordance with Federal Acquisition Regulation (FAR) under the authority of 10 USC 2304 and the Federal Acquisition Regulation (FAR) subpart 12.1 Acquisition of Commercial Items – General and FAR Part 15 – Contracting by Negotiation. In selecting the best overall offer, the following factors will be considered:

- Factor I – Past Performance
- Factor II – Price

If an Offeror's proposal fails for either of the Pass/Fail Factors, the Offeror's proposal shall be ineligible for award and shall not be further evaluated. A "Fail" is defined as, "Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable".

If the Offeror's proposal receives a "Limited Confidence" or "No Confidence" rating under Factor I - Past Performance, the Offeror's proposal shall be ineligible for award and shall not be further evaluated.

A) Volume III Factor I – Past Performance

The Government will evaluate past performance to determine the Offeror's likelihood of successfully performing the required effort based on the Offeror's recent and relevant past performance and the quality of that performance. The Government will evaluate how the Offeror's Past Performance demonstrates the Offeror's experience on three (3) total recent and relevant contracts of similar size and scope. The past performance will be evaluated as detailed below.

a) There will be three aspects to the past performance evaluation: **recency, relevance, and quality.**

1. Recency: To be determined recent the projects referenced by the Offeror must have been completed within five (5) years from the date of solicitation issuance or currently ongoing and have completed at least six (6) months of performance by solicitation issuance. Past performance information that fails this condition will not be evaluated further and will be deemed unacceptable and ineligible for award.
2. Relevancy - To be determined relevant, performance of work must be similar in size and scope to the effort required by Attachment 1 PWS – IDIQ/Attachment 2 PWS – Sample Task Order. Common aspects of relevancy include, but are not limited to, similarity of service/support, complexity, dollar value, contract type, use of key personnel and staffing, including subcontractors/partners. The relevance of individual projects will be evaluated in accordance with the Past Performance Relevancy Rating table #1 below.
3. Quality - The final aspect of the past performance evaluation will be to determine how well the Contractor performed on the recent/relevant projects. The past performance questionnaires will be considered in the overall quality assessment for each referenced recent/relevant project. Based on the quality of the Offeror's recent and relevant performance, an overall confidence rating for past performance will be assigned in accordance with the Performance Confidence Assessments Rating table #2 below.

c) The Government may utilize some or all of the following sources of past performance information for evaluation:

- Past Performance Questionnaire submitted by Contractor's client for the referenced project(s).

- Contractor Performance Assessment Reporting System (CPARS).
- Past Performance Information Retrieval System (PPIRS).
- Federal Awardee Performance and Integrity Information System (FAPIIS).
- Other sources or databases available to the Government such as interviews with program managers, contracting officer, and commercially available websites.

- d) Failure to disclose a relevant Government contract with poor past performance may affect the Contractor's past performance rating.
- e) In accordance with FAR 15.305(a)(2)(iii), the Government may consider past performance information regarding predecessor companies or subcontractor companies if the predecessor's performance or subcontractor's performance is relevant to the Contractor's performance under this solicitation. The Government reserves the right to determine the prime Contractor's past performance as more significant than other partnerships. The Government may consider past or current contracts (including Federal, State and local Government and private) for efforts similar to the Government requirement. The Government may consider information provided on problems encountered on the identified contracts and associated corrective actions. Contractors with a negative past performance rating will be afforded an opportunity to address alleged deficiencies. The Government may also consider information obtained from any other sources when evaluating past performance. Failure of a contractor to disclose a relevant Government contract with poor past performance may affect the contractor's past performance rating.
- f) One performance confidence assessment rating will be assigned for each Offeror. Past performance information about the Offeror performing as a prime Contractor may be considered more significant and given more weight in the past performance evaluation than that of the Offeror performing as a Subcontractor, predecessor company or for key personnel.
- g) Past Performance Relevancy Ratings: In conducting a performance relevancy assessment, each offeror shall be assigned one of the following ratings:

Table #1

Past Performance Relevancy Rating	
Adjectival Rating	Description
Very Relevant	Present/Past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.

Relevant	Present/Past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/Past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/Past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

- h) Performance Confidence Assessment: In conducting a performance confidence assessment, each offeror shall be assigned one of the following ratings:

Table #2

Performance Confidence Assessments Rating	
Adjectival Rating	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offerors recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the requirement effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

- i) Offers that receive a "Limited Confidence" or "No Confidence" past performance rating shall be deemed ineligible for award.
- j) In the case of a Contractor without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Contractor may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv)).

A) Volume IV Factor II – Price

- a) The Offeror shall submit a complete Price proposal, to include all tabs, using Attachment 8 Pricing Submission Worksheet. Volume IV shall be submitted as an MS Excel file. Incomplete submissions may render the proposal unacceptable.
- b) Price analysis will be performed to determine the reasonableness of the offeror's price proposal. Reasonableness may be based on one or more of the price analysis techniques in FAR 15.404-1(b)(2) including, but not limited to, comparison to the Independent Government Estimate (IGCE), comparison to other offers, and/or comparisons to commercial prices. Normally, price reasonableness is established through adequate price competition but may also be determined through price analysis techniques as described in FAR 15.404.
- c) The Offeror's proposed approach must be consistent with the price proposal. As part of the price evaluation, proposals may be reviewed to identify any significant unbalanced pricing including unbalancing in the Schedule of Prices. In accordance with FAR 15.404-1(g), Unbalanced Pricing, a proposal may be rejected if the Contracting Officer determines the lack of balance poses an unacceptable risk to the Government.
- d) For evaluation purposes, the phrase "combined contract price" in this section includes the total proposed price for the 12-month base period, plus four 12-months option periods, plus the 6-month extension period under FAR clause 52.217-8. The entire period of performance shall not to exceed a total 66-month period. The combined contract price will be considered the Offeror's proposed price in response to this solicitation and will be evaluated for reasonableness.
- e) Half the amount proposed for Option Period IV pricing will be utilized for the evaluation of the six-month extension. However, in the event that the Government wishes to invoke FAR clause 52.217-8, during any year of the resultant contract, the rates that will be used for the extension are the rates applicable to that current performance period, and the extension shall not exceed six months in total length.
- f) Price will not be rated adjectivally.

VI. NOTICE OF AWARD

A written notice of award or acceptance of an offer shall be, electronically transmitted to the successful offeror and such notice shall result in a binding contract without further action by either the Government or the successful offeror. Before the offer's specified expiration time,

the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Section M)

SECTION H

SECTION H - Special Contract Requirements

Clauses Incorporated by Full Text

H1 – Compliance with Pentagon Regulations & Performance of Work on Government Premises

H2 – Exercise of Options

H3 – Information – Public Release, Protection of and Nondisclosure Agreements

H4 – Insurance

H5 – Personnel

H6 – Alternate Dispute Resolution

H7 – Protection of Existing Equipment

H8 – Task Order Procedures

H9 – Emergency/Urgent/Undefinitized Contract Action Procedures

H1. Compliance with Pentagon Regulations & Performance of Work on Government Premises

- i. The site of the work is on a Federal Reservation Complex and the Contractor shall observe rules and regulations issued by the Director, Washington Headquarters Service (WHS) covering general safety, security, sanitary requirements, pollution and noise control, traffic regulations and parking. Information regarding requirements may be obtained by contacting the Contracting Officer, who will provide such information or assist in obtaining it from the appropriate authorities.
- ii. The rules and regulations, whether in effect now or to go into effect in the future, at the premises where services are to be performed shall apply to the Contractor and its employees while working on the premises. These regulations include but are not limited to: presenting valid identification for entrance, smoking restrictions, obtaining and using vehicle passes for all contractor-owned and/or privately owned vehicles, obeying posted directives, strict adherence to security and/or police directives, and safety procedures and directives.

H2. RESERVED

H3. Information – Public Release, Protection of and Non-Disclosure Agreements

- i. Information pertaining to this contract shall not be released to the public except as Authorized by the Contracting Officer in accordance with DFARS 252.204-7000, Disclosure of Information. Requests for approval to release information pertaining to this contract shall be submitted to the Contracting Officer.
- ii.
 - (a) Definitions. As used in this clause only:
 - (1) Protected Information and Computer Software means, unless specifically excluded by paragraph (2) below, all information and computer software, in

any form or media, that in the course of performing work under this contract are disclosed to the Contractor, its subcontractors, or their employees, or to which those persons otherwise are given access to, by (i) WHS, (ii) other government agencies, (iii) foreign governments or (iv) other contractors while directly supporting WHS, which is accompanied by written legends identifying use or disclosure restrictions or disclosed under circumstances that the Contractor knows are subject to use or disclosure restrictions established in writing by the Government.

(2) Protected Information and Computer Software does not include information that:

- i. Has been released to the general public through no action of the undersigned in breach of this agreement or through no action of any other party in breach of any other obligation of confidentiality owing to the Government or the owner of the protected information or computer software;
- ii. Has been lawfully obtained by the recipient outside the course of the performance of this contract;
- iii. Has been properly licensed or provided directly by the owner (or other authorized source) of the information or computer software to the recipient to the extent so licensed or provided;
- iv. Is owned by the recipient or was developed independently of the disclosure hereunder;
- v. Has been used or disclosed by the recipient in response to an order of a court or administrative body of competent jurisdiction to the extent permitted by that authority; or
- vi. Has been disclosed to the recipient by the Government who has explicitly authorized the recipient to use or disclose the information for another purpose, to the extent so authorized.

(b) Use and disclosure restrictions. The Contractor shall use and disclose Protected Information and Computer Software only as necessary for the performance of the requirements of this contract. Protected Information and Computer Software may not be used or disclosed for any other purpose, including bid or proposal preparation or business marketing, without the written approval of the Contracting Officer. Furthermore, unless otherwise directed by the Contracting Officer, the Contractor shall comply with all restrictions set forth in any legends, licenses or instructions provided to the Contractor or accompanying Protected Information and Computer Software or other written directives of the

Government known to the Contractor. The use and disclosure obligations imposed by this paragraph shall expire as follows:

(1)

- i. Technical data or computer software containing Limited Rights, Restricted Rights, Government Purpose Rights, Special License Rights, or Unlimited Rights legends,
- ii. Information or software marked Limited Distribution (LIMDIS),
- iii. Information or software marked Source Selection Information,
- iv. Contract proposal information marked pursuant to FAR 52.215-1(e) limiting its use for proposal evaluation purposes only; (v) information and computer software marked Contractor Proprietary or a similar legend,
- v. Data known by the Contractor to be protected by the Privacy Act; and
- vi. Information and software marked For Official Use Only (FOUO).

(2) For other information or software accompanied at time of disclosure by a written legend identifying use or disclosure restriction time periods, the expiration date shall be as stated in or derived from the legend.

(3) For all other Protected Information and Computer Software, the expiration date shall be 3 years from the date the information or software is first disclosed to the Contractor.

(c) Unauthorized Use or Disclosure. The Contractor shall immediately notify the Contracting Officer of any unauthorized use or disclosure known by the Contractor of Protected Information and Computer Software in violation of the obligations contained in this clause.

(d) Disposition. At the conclusion of performance of work under this contract, the Contractor shall immediately return to the Government all Protected Information and Computer Software in its possession. Furthermore, if an employee of the Contractor who has had access to Protected Information and Computer Software is terminated or reassigned and thus is no longer performing work under this contract, the Contractor shall immediately return all Protected Information and Computer Software in the employee's possession. In lieu of returning Protected Information and Computer Software, the Contracting Officer or Contracting Officer's representative may authorize the destruction of the information or the transfer of the information to another employee of the Contractor working under the contract. Finally, this clause shall not be interpreted as preventing the Contractor from retaining records required by statutes or other clauses of this contract, such as FAR 52.215-2 Audit and Records--Negotiations.

- (e) Third party beneficiaries. This clause is executed for the benefit of the Government and the owners of Protected Information and Computer Software. The Government and the owners of Protected Information and Computer Software (and their delegates, successors and assignees) are third party beneficiaries of the above obligations who may have additional legal rights not specified in this clause.
- (f) Duration. The above obligations imposed by this clause shall survive the termination or completion of this contract.
- (g) Classified Information. This clause is in addition to and in no manner abrogates requirements, obligations or remedies regarding the protection of classified information and does not supersede the requirements of any laws, regulations, other directives or nondisclosure agreements regarding classified information.
- (h) Other Restrictions. This agreement does not abrogate any other obligations currently placed upon the Contractor or which may be imposed upon the Contractor in the future by the Government or other persons; or remedies afforded those persons regarding those obligations.
- (i) Nondisclosure agreements. The Contractor shall require and ensure that each of its employees who may receive or be given access to Protected Information and Computer Software signs the nondisclosure agreement attached to this contract prior to the employee performing work under this contract covered by the nondisclosure agreement. The Contractor shall maintain copies of signed nondisclosure agreements for a period of at least three years after final payment under this contract. At the direction of the Contracting Officer, the Contractor shall make those agreements available for inspection by the Contracting Officer and will furnish the Contracting Officer copies of those agreements at no additional cost to the Government if requested by the Contracting Officer.
- (j) The Contractor shall include the substance of this clause in all subcontracts under this contract in which subcontractors may be disclosed or granted access to Protected Information and Computer Software.

H4. Insurance

- (a) Pursuant to FAR 52.228-5, Insurance - Work on a Government Installation, the contractor shall acquire and maintain during the entire performance period of this contract, insurance of at least the following kinds and minimum amounts as set forth below:

Type	Amount
Comprehensive General Liability per occurrence Bodily injury or death	\$500,000
Motor Vehicle Liability (for each motor vehicle): Bodily injury or death	\$200,000 per person \$500,000 per occurrence
Property Damage	\$20,000 per occurrence
Workers' Compensation and Employer's Liability	\$100,000 per person*

*Worker's Compensation and Employer's Liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

- (b) Prior to the commencement of work hereunder, the Contractor shall furnish to the Contracting Officer a certificate of written statement of the above required insurance. The policies evidencing required insurance shall contain an endorsement to the effect that cancellation, or any material change in policies adversely affecting the interests of the Government in such insurance, shall not be effective for such period as may be prescribed by the laws of the State in which this contract is to be performed and in no event less than thirty (30) days after written notice thereof to the Contracting Officer.
- (c) The Contractor agrees to insert the substance of this clause, including this paragraph, in all subcontracts hereunder.

H5. Personnel

- i. The contractor shall employ the key personnel identified in Performance Work Statement to perform the services required under this contract. During the first one-hundred fifty (150) calendar days of performance, to maintain stability of personnel proposed in order to provide quality services, it is desired that the Contractor make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. See the Performance Work Statement (PWS) for defined key personnel.

- ii. If key personnel become unavailable for work under the contract for whatever reason for a continuous period exceeding thirty (30) working days or are expected to devote substantially less effort to the work than indicated in the proposal, the contractor shall propose a substitution for such personnel in accordance with paragraph below.
- iii. The contractor agrees that changes in key personnel will not be made unless necessitated by compelling reasons. When the contractor determines that compelling reason to change key personnel exists, the contractor shall exchange key personnel with equal or more qualified credentials individuals.
- iv. All proposals to change or add key personnel shall be submitted, in writing, to the Contracting Officer not less than fifteen (15) days prior to the date of the proposed substitution/addition. In those situations where a security clearance is required, the request must be submitted not less than thirty (30) days prior to the date of the proposed substitution/addition. Each proposal or request shall provide a detailed explanation of the circumstances necessitating the proposed change, the qualification of the individual proposed for substitution or addition, and any other relevant information for Contracting Officer's assessment. All proposed substitutes (no matter when they are proposed during the performance period) shall have qualifications that are equal to or higher than the qualifications of the person being replaced.
- v. The Contracting Officer will notify the Contractor within 15 calendar days after receipt of all required information of the assessment on substitutions. Disapproval(s) of replacement personnel shall not relieve the contractor from complying with the requirements, including schedules, of this contract.
- vi. Noncompliance with the provisions of this clause will be considered a material breach of the terms and conditions of this contract for which the Government may seek any and all appropriate remedies including Termination for Default pursuant to the applicable FAR clause.

H6. Alternate Dispute Resolution (ADR)

- (a) The parties to this contract agree that swift, inexpensive and amicable resolution of disagreements is in our mutual interest. The parties further agree that Alternate Disputes Resolution (ADR) can contribute significantly to the shared goal of resolving disagreements swiftly and efficiently. Therefore, the parties agree to the non-binding use of ADR in an effort to seek final disposition of disagreements within the timeframes set forth below:

Resolution

Period after Receipt

Amount in Controversy of Written Notice

\$250K or less Not to exceed 60 days

\$250,001K-\$1M Not to exceed 90 days

Over \$1M Not to exceed 120 days

- (b) The parties agree that one or more of the following ADR methods may be utilized; mediation, arbitration, mini-trial, establishment of an Executive Dispute Resolution Committee consisting of principals of the owner and the builder, establishment of a standing Dispute Resolution Board made up of impartial third parties (each party shall elect one member and the third shall be elected by the two party-designated members) at any time during contract performance. The parties further agree that the use of ADR is entirely voluntary and nothing in this provision shall affect the rights of either party under the clause entitled "Disputes," FAR 52.233-1.

H7. Protection of Existing Equipment

The Contractor is responsible for providing adequate protection for the job site and the occupants while performing under a contract. Equipment that is to remain in place within the area of contract operations shall be covered and protected against damage or loss. Equipment which is removed in performance of work under the contract shall be stored on the premises where directed for shall be reused in work required by the specifications. Security for equipment or material that is to be reused and is removed for temporary storage shall be the sole responsibility of the Contractor.

H8. Task Order Procedures

The following information provides the process that will be used to issue task orders under this contract. The contractor is reminded that only the Contracting Officer (KO) is authorized to request proposals and to task the contractor.

(a) STEP 1 – Issuance of Request for Proposal (RFP) Letter:

- The KO will submit an RFP letter to the contractor via email. At a minimum, the RFP letter will consist of a Performance Work Statement (PWS). The PWS will contain:
 - 1) Purpose
 - 2) Scope or mission
 - 3) Period and place of performance
 - 4) Background

- 5) Performance objectives, i.e. required results
 - 6) Deliverables
 - 7) Any operating constraints
 - 8) Points of contact for the KO and the Contracting Officer's Representative (COR).
- As part of the RFP package, the Government may also provide any of the following information on an as-needed basis: diagrams, charts, pictures, required material specifications, et cetera. The PWS will be incorporated into the Task Order as the official requirement document.

(b) STEP 2 – Contractor submits proposal

- The contractor shall submit a complete, detailed proposal in accordance with the time guidelines provided in the RFP letter. In general, due date for submitting a proposal ranges from 5 to 14 calendar days from receipt of the RFP letter.
- At a minimum, the contractor's proposal shall include a technical approach to perform the requirement, a project schedule (if necessary), and a price proposal.
- Project Schedule: The project schedule shall identify and specify estimated duration for each major task area measured in terms of "days from issuance of task order". The total duration of the project schedule must equal the duration of the period of performance referenced in the PWS.
- Price Proposal: The price proposal shall be submitted in MS Excel format. It shall utilize the contractor's approved labor categories and rates to form the basis of a firm fixed price. For labor, material, equipment, etc. that is not represented by the approved labor categories and rates (hereafter referred to as non-prepriced items, or NPIs), the contractor shall follow these procedures:
 - 1) The contractor shall justify the use of NPIs.
 - 2) When NPIs are proposed, the contractor shall submit three competitive quotes for the same items.
 - 3) In the event where obtaining three competitive quotes is not practicable the contractor shall submit, in writing as part of the task order proposal, the relevant reasons why the submission of three competitive quotes was not performed. Acceptable reasons include (but are not limited to) market availability, sole source, and total price of NPIs is \$3,500 or less.
 - 4) Although NPIs will be negotiated, this shall NOT be construed to include elements of work which are incidental to or customarily required for performance of a priced item of work.

(c) STEP 3 – Government reviews proposal

The Government will review the contractor's proposal package. This step may involve communication and/or clarification between the Government and the contractor.

- i. If the Government accepts the contractor's proposal: The KO will issue a task order for the contractor's review and signature. If the contractor discovers ambiguities, mistakes, or inconsistencies made by the Government, the contractor shall notify KO immediately and request any applicable changes. In the absence of such request, the contractor signs the Task Order, indicating the signatory's acceptance of all terms and conditions of the Task Order. Once the contractor submits the signed copy of the Task Order, the KO will then sign the Task Order, thereby legally binding the Government into a contractual relationship with the contractor under the terms and conditions of the Task Order.
- ii. If the Government does NOT accept the Contractor's Proposal: The Contracting Officer will submit its comments and/or requested changes to the proposal for the contractor's review. Proceed to Step 4.

(d) STEP 4 - Contractor reviews the Government's comments and/or requested changes.

(e) STEP 5 - Contractor submits revised proposal

If the contractor accepts all or some of the requested changes, the contractor shall submit a revised proposal reflecting those changes. For requested changes not accepted by the contractor, the contractor shall indicate the reason why those changes were not accepted in its revised proposal.

(f) STEP 6 – Government reviews revised proposal

If the Government accepts the contractor's proposal, the KO will issue a Task Order utilizing the procedures under Step 5, above.

(g) STEP 7 – Negotiation through discussions

The purpose of this step is to establish concurrence between the Government and the contractor regarding issues could not be resolved in the prior steps. The KO will establish a time, location, and the method of the discussion meeting. The KO will determine the required participants for the Government and the contractor. The contractor may request additional or substitute attendees for the meeting, subject to the approval of the KO.

- i. If consensus is achieved through discussions: The KO will issue a Task Order utilizing the procedures under Step 5, above.
- ii. If consensus is NOT achieved through discussions: The Government will reject the Contractor's proposal. At this point, the Government may either procure the required services through other sources/methods or unilaterally issue a Task Order to the contractor for performance.

H9. Emergency/Urgent/Undefinitized Contract Actions

An emergency/urgent/undefinitized action is defined as a situation that requires immediate action to eliminate hazards to personnel or equipment, to prevent loss of or damage to property, or to restore essential services or functions that have been disrupted, the following steps shall be followed.

The following provides the process that will be used to issue task orders under this contract:

a) STEP 1 – Contractor notifies government:

During the performance of services, if the Contractor discovers an emergency/urgent/undefinitized action and its estimated cost is expected to be greater than \$3,500, the Contractor shall notify the COR and the KO as soon as it is practicable.

b) STEP 2 – Government Action:

If the COR concurs with the Contractor's assessment that the emergency/urgent/undefinitized action is urgent and that the estimated cost is expected to be greater than \$3,500, the COR will submit a Statement of Objectives and funds availability notice to the KO.

c) STEP 3 – Contracting Officer issues a Notice to Proceed (NTP):

Upon verification of funds, the KO will submit a NTP to the Contractor in writing. The NTP, at a minimum shall contain: (1) A general description of the work to be performed; (2) maximum cost ceiling (Not to Exceed [NTE]) authorized for the work.

d) STEP 4 – Contractor performs work:

Upon receipt of the NTP from the KO, the Contractor shall perform the emergency/urgent/undefinitized action of the urgent requirement as soon as it is practicable. The Contractor shall not incur costs (direct costs + indirect costs + profit/fee/burden) greater than the amount specified in the NTP. During the performance of action, if the Contractor discovers that the total of the emergency/urgent/undefinitized action is expected to exceed the NTE, the Contractor shall immediately notify the KO.

e) STEP 5 – Contractor submits proposal:

Upon completion of the emergency/urgent/undefinitized action, the Contractor shall submit a Performance Work Statement and a price proposal.

- Performance Work Statement: The Performance Work Statement (PWS) submitted by the Contractor will be incorporated into the Task Order as the official requirement document. At a minimum, the PWS will include--

- (1) General summary of the work to be performed,
- (2) Detailed description of the work to be performed – divided into major task areas (e.g. methods utilized to achieve each identified task area),
- (3) Period and place of performance,
- (4) Operating Hours,
- (5) Deliverables,
- (6) Special Considerations.

- Price Proposal: The price proposal shall be submitted in MS Excel format. The Contractor shall provide an itemized listing of all direct costs (i.e. material and labor costs).

f) STEP 6 – Government Reviews Proposal:

- The Government will review the Contractor's proposal package for accuracy of the Performance Work Statement and allocability, allowability, and reasonableness of the price proposal. This step may involve communication and/or clarification between the Government and the Contractor.
- If the Government accepts the Contractor's Proposal: The Contracting Officer will issue a task order for the Contractor's review and signature. If the Contractor discovers ambiguities, mistakes, or inconsistencies made by the Government during its review of the Task Order, the Contractor shall notify Contracting Officer immediately and request any applicable changes. In the absence of such request, the Contractor signs the Task Order, indicating the signatory's acceptance of all terms and conditions of the Task Order. Once the Contractor submits the signed copy of the Task Order, the Contracting Officer will then sign the Task Order, thereby, legally binding the Government into a contractual relationship with the Contractor under the terms and conditions of the Task Order.

g) STEP 7 – If the Government does NOT accept the Contractor's proposal:

The Contracting Officer will establish a time, and location to conduct discussions in order to establish concurrence between the Government and the Contractor. The Contracting Officer will determine the required participants for the Government and the Contractor. The Contractor may

request additional or substitute attendees for the meeting, subject to the approval of the Contracting Officer. After consensus is achieved, the Contracting Officer will issue a task order for the Contractor's review and signature.

(End of Section H)